



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

October 12, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 12592
(NINTH REVISION)

EXPIRATION DATE: 2027-09-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Matson Navigation Company, Inc.
Oakland, CA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of motor vehicles with fuel in their tanks in a cargo hold of the vessels S.S. MATSONIA, MV Manukai, MV Maunawili, MV Manulani, and MV Maunalei, without full compliance with § 176.905(h), which requires all electrical equipment in the hold, other than fixed explosion-proof lighting, to be disconnected from its power source at a location outside the hold. This special permit provides no relief from any regulation other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 176.905(h) in that all electrical equipment in the hold, other than fixed explosion-proof lighting, must be disconnected from its power source at a location outside the hold, except as specified herein.
5. BASIS: This special permit is based on the application of the Matson Navigation Company, Inc. dated July 25, 2023, submitted in accordance with § 107.109.

Tracking Number: 2023075331

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Vehicle, flammable liquid powered	9	UN3166	N/A

7. SAFETY CONTROL MEASURES: Not applicable.8. SPECIAL PROVISIONS: This special permit applies when motor vehicles are shipped as cargo in freight containers or vehicle racks in Hold number 3 of the vessel S.S. MATSONIA, or in vehicle racks in Hold Numbers 1, 2, 3, and 4 of the vessel MV Manukai, MV Maunawili, MV Manulani, and MV Maunalei.9. MODES OF TRANSPORTATION AUTHORIZED: Cargo vessel.10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each vessel when transporting vehicles covered by this special permit.

b. In Hold number 3 on S.S. MATSONIA, and hold numbers 3 and 4 of MV Manukai, MV Maunawili, MV Manulani, and MV Maunalei, all electrical reefer and convenience outlets must be permanently disconnected below the third deck. All remaining electrical equipment including lighting fixtures, cable, fittings, etc., up to but not including the third deck must be rated for service at least in a Class 1, Division 2 location.

c. The supply and exhaust fans for the mechanical ventilation system for Hold number 3 on S.S. MATSONIA and hold numbers 1,2,3, and 4 of MV Manukai, MV Maunawili, MV Manulani, and MV Maunalei, must be arranged such that supply is from the port and starboard areas over the transformers on the Third Deck level while exhaust is from the lower levels of the hold where heavier vapors (gasoline) could accumulate in the area of the tank top in the event of leakage of fuel from one or more vehicles.

- d. The mechanical ventilation system for Hold number 3 on S.S. MATSONIA and hold numbers 1, 2, 3, and 4 of MV Manukai, MV Maunawili, MV Manulani, and MV Maunalei must be operated continuously while vehicles are on board under the terms of this special permit and achieve approximately 1.5 air changes per hour based on the volume of an empty hold.
- e. In the event of failure of the ventilation system for the number 3 hold space on S.S. MATSONIA, and hold numbers 1, 2, 3, and 4 of MV Manukai, MV Maunawili, MV Manulani, and MV Maunalei, the space must be periodically monitored each watch to ensure that any build up of explosive vapors is detected. In the event of a fuel leak, bilge wells must be blocked to prevent entry into the bilge system, all electrical equipment in the hold (other than explosion-proof or intrinsically safe equipment) must be secured from outside the space and the spilled fuel must be removed.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)-“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notices of certain hazardous materials incidents, and 171.16 detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KH